

Ashu Rathi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 December 2015 · Writ-C No. 67443 of 2015 · **Writ dismissed; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ assailing recovery of an electricity demand, without challenging the principal charges, was not entertained. Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplied an alternative remedy for disputing the amount.

FACTUAL SUMMARY

Ashu Rathi disputed the amount raised by the Electricity Urban Distribution Division-I in a communication dated 7 July 2015 and, on that footing, contended that a citation ought not to have been issued for recovery of that amount. He invoked the writ jurisdiction of the High Court to assail the recovery proceedings. The petition did not challenge the principal demand of charges raised by the respondents.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternate remedy for disputed demand and recovery

HOLDING

A writ that disputes the amount of an electricity demand and assails only the recovery citation, without challenging the principal demand of charges, is not to be entertained; Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes the alternative remedy.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ assailing recovery of an electricity demand, without challenging the principal charges, was not entertained. Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplied an alternative remedy for disputing the amount.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE 7 JULY 2015 DEMAND AND OF THE RECOVERY CITATION

Writ dismissed on alternative remedy; merits of the demand and citation not examined.